

Calendar Lines # 8-9
Case Name Shirley Long et al vs Barbara Kalman et al
Case No. 22CV397661
Motion to Enforce Settlement (Lines # 8 – 9) Before the Court are two separate motions to enforce settlement one filed by the Defendants (on December 17, 2025 (Line #8) and another filed by the Plaintiffs on February 3, 2026 (Line #9). The Court analyzes both cases below. This case stems from a dispute between two advancement commercial property owners about a reciprocal easement agreement. On April 26, 2022, Plaintiffs Shirley Long filed the Complaint alleging the following causes of action and relief, including: equitable easement and quiet title, declaratory relief, injunctive relief, and trespassing. Defendants filed an Answer on July 26, 2022. The parties filed a notice of settlement on July 8, 2025. On December 17, 2025, Defendants filed a motion to enforce the settlement pursuant to Code of Civil Procedure section 664.6. The motion is accompanied by a proof of electronic service on Plaintiffs’ counsel on that same day. Plaintiffs filed timely opposition papers on August 12, 2026. The Defendants filed a reply brief. On February 3, 2026, the Plaintiff filed a motion to enforce the settlement pursuant to Code of Civil Procedure section 664.6. The motion is accompanied by a proof of electronic service on Defendants’ counsel on that same day. Defendants filed timely opposition papers on August 12, 2026. The Plaintiffs filed a reply brief. On August 24, 2026, the Court continued the motions to this date and ordered parties to meet-and-confer about the motions and discuss whether parties can reach a stipulation on terms and narrow the scope. Parties were ordered to file a joint statement updating the court by August 31, 2026. The parties filed a joint statement regarding the motions to enforce settlement and confirmed meeting and conferring about the motions. Defendants project manager provided written clarifications on the “T” curb work, including “(i) staking of the property line prior to initiating construction, pursuant to the survey of record, and after demolition, the three foot parking easement based on the survey, and the placement of the curb as approved by the City of Cupertino; and, (ii) restoration in kind of any landscaping and/or irrigation drainage, and surface or subsurface improvements approved by the City of Cupertino and that are in place at the start of construction (subject to relocation of any plants or vegetation that may impede overhang of vehicles within the three foot parking and landscaping easement), and subject to the Plaintiffs having left adequate space for the required three foot parking and landscaping easements as set-forth in the Easement Agreement.” (Joint statement, p. 3). Based on the foregoing, the parties request a continuance for thirty days so that site plans can be finalized and submitted to the City of Cupertino for approval of the revised permit for the parking lot modification. Upon submission of the plans, Plaintiff and Defendants represent they will withdraw their respective motions, but each side reserves the right to enforce settlement in event of future breach. The Court commends the parties for their diligent efforts to resolve the issues and GRANTS the request to continue both motions to November 17, 2026 at 9:00 a.m. in Department 1. Should parties resolve the issue at hand, as noted in the joint statement, the Court orders that the motions are withdraw in compliance with Local Rule, 8 D.